

26PR00380 Estate of Kelly James Morgan

County: santa-barbara

Division: Decedent's Estate

Department: 4 SM-Cook

Hearing date: 2026-09-21

Motion: Petition to Determine Succession to Primary Residence

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/26pr00380>

Source SHA-256: ae0062045e2877f9b0e70f58d5ac404b15447e14a2965b32667e2e3fb525bba1

Tentative Ruling: Estate of Kelly James Morgan

Case Number

26PR00380

Case Type

Decedent's Estate

Hearing Date / Time

Mon, 09/21/2026 - 08:30

Nature of Proceedings

Petition to Determine Succession to Primary Residence

Tentative Ruling

Probate Notes:

Matter is recommended for denial.

In 2024, the statutes in the Probate Code that governed the Determination of Succession to Real Property procedure were amended in order to drastically increase the dollar amount allowable under that statutory procedure. The amendment increased the amount allowable from \$184,500 to \$750,000. However, the drafters of the amendment made a compromise with lobbyists opposing the law who argued that the new amounts would cause unforeseen problems with clouds on title and a drastic reduction of fees to probate attorneys. The compromise was that the entire statutory procedure was restricted to only a decedent's "primary residence," and would not be available for use on any other property, real or personal. As a result of that compromise, the mandatory Judicial Council form (DE-310) was amended to reflect the above mentioned restriction, and went into effect on April 28, 2025.

Petitioner would have understood this state of the law if the petition before the court was filed on the updated Judicial Council form, as that form contains clear language that restricts the Probate Code sections 13150-51 procedure to the "primary residence" of a decedent, and clearly states required evidence that must be attached. Petitioner here, however, used the outdated form, and appears to be requesting the distribution of property that was not the Decedent's primary residence.

Accordingly, the Petition must be denied. It is recommended the Court deny the petition without prejudice.

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

312-C East Cook Street

Santa Maria, CA 93454

US